

COMMERCIAL LEASE AGREEMENT

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This Commercial Lease Agreement (the "Lease") is entered into as of January 10, 2026 by and between Harbor & 9th Properties LP, a California limited partnership ("Landlord"), and Luma Coffee Roasters, Inc., a California corporation ("Tenant").

1. Premises. Landlord leases to Tenant approximately 2,850 rentable square feet located at 901 Harbor Avenue, Suite 120, Oakland, California 94607 (the "Premises"). Tenant may use the Premises only for retail coffee service, packaged food sales, office administration, and related lawful purposes.
2. Term. The initial term begins on March 1, 2026 and expires on February 29, 2031, unless earlier terminated under this Lease. Tenant may access the Premises beginning February 1, 2026 solely for approved build-out work.
3. Base Rent. Monthly base rent is \$9,975 for the first lease year, increasing by 3% on each anniversary of the commencement date. Rent is due on the first day of each month without demand, offset, or deduction.

DEPOSIT, OPERATING EXPENSES, AND MAINTENANCE

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4. Security Deposit. Tenant shall pay a security deposit of \$19,950 upon signing this Lease. Landlord may apply the deposit to unpaid rent, repair costs, or other amounts due after Tenant default. The unused portion will be returned within 30 days after surrender of the Premises.

5. Operating Expenses. Tenant shall pay its proportionate share of common area maintenance charges, real estate taxes, insurance costs, utilities serving common areas, and other operating expenses for the property. Landlord will provide an annual reconciliation statement.

6. Maintenance. Tenant shall maintain the interior of the Premises, including fixtures, floor coverings, interior plumbing lines, lighting, and equipment installed by Tenant. Landlord shall maintain the roof, foundation, structural walls, and building systems, except to the extent damage is caused by Tenant or its invitees.

7. Alterations. Tenant may not make alterations without Landlord's prior written consent, which may not be unreasonably withheld for non-structural alterations. All alterations must comply with law and be performed by licensed contractors.

DEFAULT, ASSIGNMENT, AND GENERAL TERMS

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8. Default. Tenant defaults if Tenant fails to pay rent within five days after written notice, abandons the Premises, violates use restrictions, fails to maintain required insurance, or breaches any other material obligation and fails to cure within 20 days after written notice.

9. Remedies. Upon Tenant default, Landlord may terminate the Lease, recover possession, accelerate rent to the extent permitted by law, recover damages, apply the security deposit, and pursue any other available remedy. Landlord's remedies are cumulative.

10. Assignment and Subletting. Tenant may not assign this Lease or sublet all or part of the Premises without Landlord's prior written consent. Landlord may consider the proposed transferee's financial strength, business reputation, and proposed use. Any unauthorized assignment or sublease is void.

11. Insurance. Tenant shall maintain commercial general liability insurance with limits of at least \$2,000,000 per occurrence and property insurance covering Tenant's personal property and improvements. Landlord must be named as an additional insured.

12. Governing Law. This Lease is governed by California law. Venue for disputes lies in Alameda County, California.